

Court No. - 2

Case :- WRIT - C No. - 2447 of 2025

Petitioner :- Mohd. Afaq

Respondent :- U.P. Power Corporation Limited Thru.
Chairman Lko. And 3 Others

Counsel for Petitioner :- Adnan Ahmad

Counsel for Respondent :- Amit Kumar Dwivedi

Hon'ble Rajan Roy,J.

Hon'ble Om Prakash Shukla,J.

1. Heard Shri Adnan Ahmad, learned counsel for the petitioner and Shri Amit Kumar Dwivedi, learned counsel for the petitioner.

2. Considering the order proposed to be passed issuance of notice to the opposite party no. 4 is dispensed with.

3. Although, there is a dispute between the petitioner - tenant and the opposite party no. 4 - landlord, as claimed by the petitioner, and some proceedings are also pending but the law is very well settled that the tenant can not be deprived of electricity connection only on account of pendency of the said dispute, unless of course there is any other impediment, subject to submission of indemnity bond in terms of Para 4.4 of U.P. Electricity Supply Code, 2005. We may in this regard refer to the judgment reported in **2014 (6) ADJ 672; Seema Mansoor Vs. U.P. Power Corporation Ltd.** and a decision of Hon'ble the Supreme Court reported in **(2011) 12 SCC 314; Shri Chandu Khamaru Vs. Naraya Malik and Ors.**

4. We, accordingly, **dispose of** this writ petition with the observations/directions that if the petitioner submits indemnity bond along with application for grant of electricity connection, then, the same would be considered as per law and a speedy decision shall be taken within a period of three weeks of submission of such application unless there is any legal impediment in which case the petitioner shall be informed in writing.

5. This order however, shall have no bearing whatsoever of any question of possession or title pending before any Court or Authority in respect of premises in question involving the parties herein, however, in order to give

electricity connection the prerequisite would be the petitioner is being in possession of the premises in question which will have to be verified.

(Om Prakash Shukla,J.) (Rajan Roy,J.)

Order Date :- 12.3.2025
R.K.P.